

Reviewing your contribution rate

Occupational contingencies. Which rate genuinely applies to each person, and how it is corrected going forward and backward.

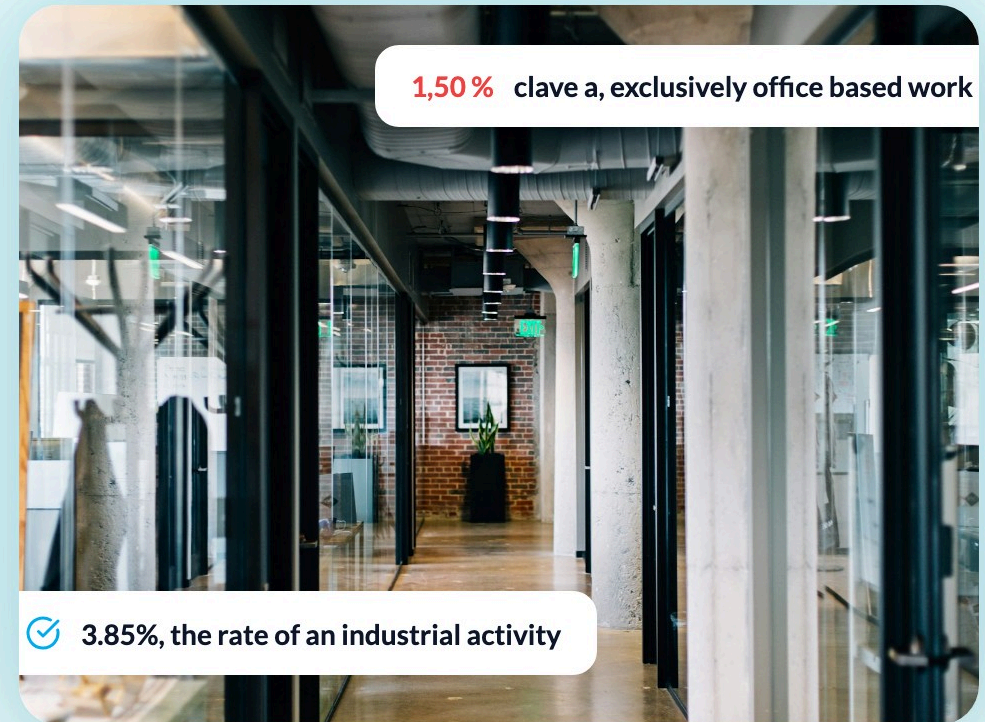


An unreviewed classification is not just a cost. It is also an exposure.

The premium schedule has two tables, one giving a rate by economic activity and another giving it by occupation. **When a person's occupation appears in the second, it overrides the activity of the whole company.**

Workforces change, roles move, and the classification stays as it was on day one. **When a company under-declares, the exposure stays open for four years, and when it over-declares, it contributes every month above what it owes.**

At Ayming we believe no company should be left exposed, or pay more than it owes, because of a classification nobody has looked at since.



Why now

DEADLINE RUNNING

Before 1 February 2027

Every Spanish company reports to the Tesorería the **occupation code of every person already registered**, within a six month window opened on 1 August 2026. From that date the authorities hold, for the entire workforce, a declaration of what each employee does.

Sole additional provision of Real Decreto 643/2026 of 29 July

ALREADY IN FORCE

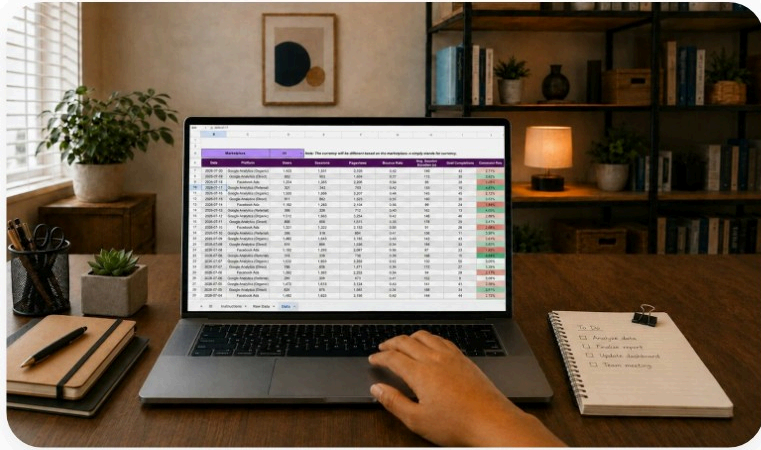
Since 1 January 2026

A company that did not report its CNAE-2025 code receives **the highest rate among the compatible codes**, and a late report only takes effect from the following settlement period, never retroactively.

Forty fifth transitional provision of the LGSS. No court has ruled on the transition yet, so this is a check to run, not a finding.

Said precisely, because it can be checked in the BOE, that occupation code **is not the clave of Cuadro II** and does not by itself change the contribution rate. What it does is put the question on the table, for the whole workforce, with a date attached.

How this gets handled today



Not looking

Not looking is not neutral. The direct settlement system proposes each month and the company confirms, with nobody reviewing the occupation codes entered on the day of registration. Under-declaring leaves the risk open for four years, over-declaring loses the saving payment by payment.



Asking the payroll adviser

Outside their remit. The adviser applies the codes the company gives them, rigorously, and their brief is payroll. Cross-checking actual duties, the real place of work and Tribunal Supremo case law is a different specialism, and nobody has asked them for it.



The law firm

Defends a position somebody sets beforehand. It argues well and carries the proceedings when they are needed, but cross-checking payroll, the real place of work and actual duties comes before the legal argument.

Certainty on one side, savings on the other

3,85 %

The rate the company pays for its activity

Manufacture of transport equipment, metallurgy, metal products

↗ CERTAINTY, THE OCCUPATION RAISES THE RATE

6,70 %

Clave f, drivers of vehicles over 3.5 tonnes

A transport company was contributing at 3.70% for its activity when the rate that applied was the 6.70% of its drivers' occupation. Knowing it before the authorities do is the difference between correcting and having to answer.

STS 1550/2018, occupation overrides activity

↘ SAVINGS, THE OCCUPATION LOWERS THE RATE

1,50 %

Clave a, staff in exclusively office based work

The office occupation applies even when the work matches the company's own activity, provided there is no exposure to the risk and it is carried out in office premises.

STS 762/2019, three conditions and the clave applies

In both directions the company gains the same thing, **certainty about what it declares and a rate it does not overpay.**

What a resolved situation looks like



Every person on the rate that applies to them

The classification reflects what each person actually does and where they do it, not what was entered the day they joined.



A position that holds in both directions

You know which populations are solid, which are arguable and which are better left alone, before anything is filed.



What was overpaid, reclaimed in time

The four previous years are reclaimed before the deadline closes them one by one, with late payment interest.



ayming

Ayming International HR

95

SOCIAL CONTRIBUTIONS
CONSULTANTS

250M€

RECOVERED FOR OUR HR
CLIENTS

40 years

OF EXPERIENCE IN SOCIAL
CONTRIBUTIONS

65M€

BILLED IN SOCIAL
CONTRIBUTIONS

For any company contributing for occupational contingencies, Ayming International HR reviews the classification of every role, builds the evidence file before anything is filed, corrects the rate going forward and reclaims what was overpaid over the last four years. Two results at once, certainty about what you declare and savings on what you contribute.

A global answer, delivered locally

Ayming International HR centralises the social contributions practice so the best specialists can be mobilised on every assignment, and delivers the service in country.

1

One centre of excellence, not scattered offices

We concentrate the social contributions practice in a single team of 95 specialist consultants instead of spreading it across country headcounts. Capacity is assigned by specialism, not by geography.



2

Ayming International HR mobilises on your case

Ayming International HR puts the best specialists of the mechanism on every assignment, with data analysts, a single methodology and strategic account management, backed by quality and R&D.



3

The assignment is delivered in Spain

The assignment runs in country, in Spanish, with a local presence, an independent Spanish law firm chosen by mutual agreement, and direct dealings with the authorities.

A local advisory firm is limited to its own headcount. You get the full bench of the group.

Our strategy at work, three examples

This offer is not the only one built this way. Three examples from the group, in managed services, software and consulting.



MANAGED SERVICES

Accident reporting in 28+ countries

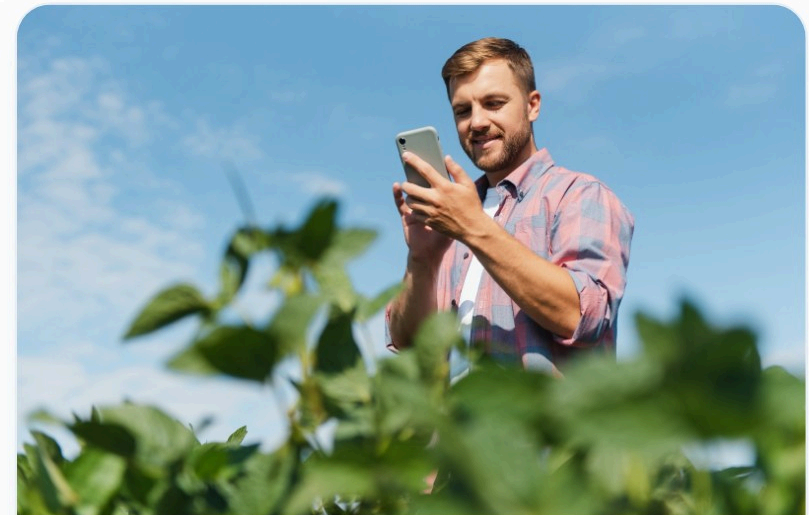
Ayming International files through the local forms and systems of each country: Net-entreprises in France, Sistema Delt@ and CoNTA in Spain, the INAIL report in Italy.



SOFTWARE

HSE audits and inspections

One audit module applied country by country, aligned with the international standards ISO 45001 and ISO 14001.



CONSULTING

Sustainability and environment

An international view with a local focus: environmental taxes, energy saving certificates, grants and ESG reporting compliant with CSRD.

What we bring



Activity mapping

The activities actually carried out at each site, not the ones declared years ago



Occupation mapping

The occupations that can give a rate different from the one derived from the CNAE



Impact quantification

Historic overpayments and future savings, quantified before anything moves



Claim and correction

Claims filed with their documentary support, not after a refusal



Follow-up of claims and litigation

Decisions followed through to actual enforcement

Activity mapping

- ✓ Analysis of the company's practices and of the activities actually carried out at each site
- ✓ The company's CNAE code checked against its effective activity
- ✓ Effective description of duties and real place of work, role by role



Occupation mapping

- ✓ Occupations in Cuadro II that can give rise to an AT/EP rate different from the one derived from the CNAE
- ✓ Exclusively office based occupation, no exposure to the risk, and work carried out in office premises, all three at once
- ✓ Quantitative criterion of more than half the working day, following Tribunal Supremo case law
- ✓ Profiles with no identified case law flagged as such, never presented as solid



Impact quantification

- ✓ The rate actually applied compared with the one that would have applied, contribution account by contribution account
- ✓ Historic overpayments and future savings quantified separately
- ✓ Separation of what is recoverable from what the same reading calls into question
- ✓ Population split into solid, arguable and better left alone, before anything is filed



Claim and correction

- ✓ Correction of the claves in the settlement system, effective from the following period
- ✓ Claim for refund of undue payments, calculated payment by payment
- ✓ Evidence file built before the claim is filed, not after a refusal arrives
- ✓ Risk assessment, organisation charts and collective agreement supplied as documentary support



Follow-up of claims and litigation

- ✓ Follow-up of the six months to decision, knowing that silence means refusal
- ✓ Administrative or judicial decisions followed through to actual enforcement
- ✓ Written criteria for new registrations and site changes
- ✓ Legal support through an independent law firm, chosen by mutual agreement

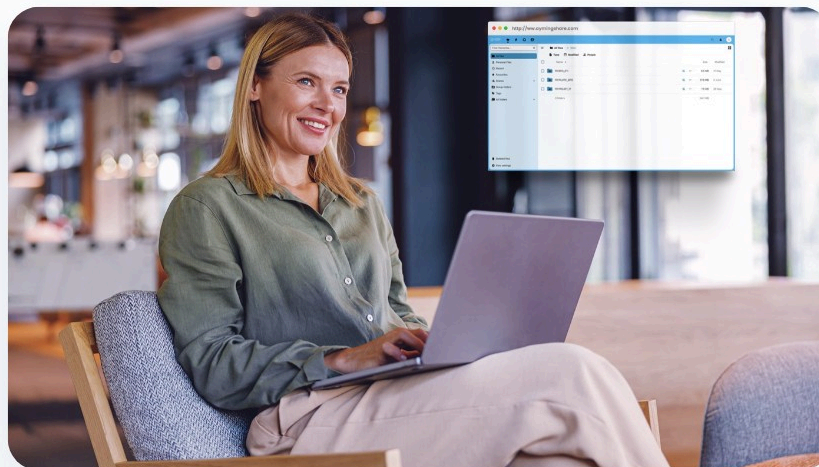


Ayming Share, your secure workspace

Ayming's secure, collaborative online platform for exchanging the documents of the assignment.

Share and collaborate

- Share and exchange data and documents.
- Communicate and work together.
- Alerts on new document uploads, through notifications.
- Anticipate the next steps.
- Speed up exchanges and decisions.



Protect your data

- Hosting managed by Ayming.
- Access through username, password and captcha.
- Encrypted data.
- Detection of fraudulent access attempts.
- Site access control system.



ISO 27001 certification covering information security management, and HDS certified health data hosting through Ayming Digital.

Benefiting from local proximity and the local experience it takes...

Our teams support our clients day to day, drawing on an **ecosystem of professionals** across the country: independent law firms specialising in social security, graduados sociales, chartered accountants and independent doctors, present in Madrid, Barcelona and Valencia.



... with the strength of the whole Ayming International HR team, Europe's leader in social contributions



95
SOCIAL CONTRIBUTIONS
CONSULTANTS

250M€
RECOVERED FOR OUR HR CLIENTS

40
YEARS OF EXPERIENCE

65M€
BILLED IN SOCIAL CONTRIBUTIONS

Our HR services, country by country

Five HR practices across six European markets served by a local team that knows its own rules and its own administration.

HR PRACTICE	 FRANCE 5 services	 SPAIN 5 services	 PORTUGAL 3 services	 GERMANY 3 services	 ITALY 4 services	 BELGIUM 3 services
 Risk prevention						
 Occupational injuries and diseases						
 HR costs and contributions						
 HR grants						
 Occupational sick leave						

 Available
  On demand
  No activity in this country yet

Clients who already trust Ayming

+2.500

Clients in Spain



+10 million

Payslips analysed per year

Management of workplace accidents and occupational illnesses



8.490

Clients across every sector

Command of social contributions



Questions we get asked



If we start looking at this, are we not inviting an inspection?

The exposure already exists and runs whether it is looked at or not, and the authorities have their own four year window to assess. Quantifying it privately, in both directions, is what makes it manageable, and the decision to file always rests with the client.



And if it does not hold?

Part of the case law has gone against companies, and we say so before anyone else does. That is why the work starts with the evidence file, not with the size of the amount.



How much are we going to recover?

We do not know before seeing the data, and any figure given beforehand would be an estimate dressed up as a result. What we do know is the mechanics, the difference in points multiplied by the real bases, by the people who meet the criterion and by the years still open.



How much work is this going to cost us?

We request the contribution files and work them ourselves, with the corresponding authorisation. From the company we need the material describing the real duties and the place of work, the one thing no Seguridad Social file records.

How the assignment runs

PHASE A • Diagnostic and quantification

Framing and diagnostic

4 weeks

- Perimeter, work plan and schedule
- Review of current practices, of the CNAE applied and of the contributions paid

DELIVERABLES

Legal and technical assessment report. Risk summary.

Validation and quantification

6 weeks

- Determination of the appropriate changes and review of the occupations
- Calculation of the overpayments and of the recoverable amounts

DELIVERABLES

Classification analysis report. Technical justification file. List of identified corrections.

PHASE B • Correction and recovery

Correction and recovery

2 weeks, then at the pace of the authorities

- Claims filed and argued before the competent bodies
- Follow-up through to the actual recovery of the amounts

DELIVERABLES

Legal submissions. Recovery follow-up report. Final results report.

What we need to start. The job descriptions, the risk assessment, the organisation charts and the collective agreement, which come through Ayming Share. A power of attorney in the Registro Electrónico de Apoderamientos for proceedings and notifications. RED authorisation shortens the diagnostic, it is not essential.